

25AVCV00930 25AVCV00930

County: los-angeles

Division: Civil Law and Motion

Department: A14

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Case Number: 25AVCV00930 Hearing Date: September 3, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

KATHLEEN BASS, an individual and as

Beneficiary of ADA PAUL IRIVOCABLE

TRUST; and, ADA PAUL IREVOVABLE

TRUST, a California Irrevocable Trust,

Plaintiffs,

v.

JAMES ZEMEL, an individual; ALL

PERSONS UNKNOWN, CLAIMING ANY LEGAL OR EQUITABLE RIGHT,

TITLE, ESTATE, LIEN, OR INTEREST

IN THE PROPERTY DESCRIBED IN

THE COMPLAINT ADVERSE TO

PLAINTIFF'S TITLE, OR ANY CLOUD UPON PLAINTIFF'S TITLE THERETO; and DOES 1 through 25, inclusive,

Defendants.

Case Number 25AVCV00930

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: September 3, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a quiet title action involving real property located at 35453 31st Street West, Acton, CA 93510 (the Property). Defendant James Zemel (Zemel) moves to set aside entry of default.

On July 25, 2025, Plaintiff Kathleen Bass (Bass), as an individual and as Beneficiary of the Ada Paul Irrevocable Trust (the Trust), and the Trust (together Plaintiffs) filed a complaint against Defendants Zemel, all persons unknown, claiming any legal or equitable right, title, estate, lien, or interest in the Property described in the complaint adverse to Plaintiff's title, or any cloud upon Plaintiff's title thereto, and DOES 1 through 25 (collectively Defendants), asserting one cause of action for quiet title of the Property.

Plaintiffs allege that the Property was an asset of the Trust and encumbered by a mortgage, which the Trustee failed to service, address, or communicate to Bass, ultimately resulting in the sale of the Property to Zemel on October 14, 2024 at a nonjudicial foreclosure sale. (Compl., ¶¶ 12-14.) Plaintiffs concede the Property was in default for non-payment of mortgage, but contend the foreclosure sale was the result of the Trustee's breaches of duties and was conducted without lawful authority, without adherence to statutory notice requirements, and in violation of the fiduciary duties owed to Bass as beneficiary. (Compl., ¶¶ 15-19.) Plaintiffs claim they obtained simple title to the Property by adverse possession and Bass claims an equitable interest by virtue of her status as beneficiary. (Compl., ¶¶ 24-25.)

On November 10, 2025, Plaintiffs dismissed DOES 1 through 25 without prejudice.

On January 15, 2026, Plaintiffs dismissed all persons unknown, claiming any legal or equitable right, title, estate, lien, or interest in the Property described in the complaint adverse to Plaintiff's title, or any cloud upon Plaintiff's title thereto with prejudice.

On January 29, 2026, default was entered as to Zemel. Plaintiffs requested a Court judgment, requiring testimony and a hearing date.

On March 3, 2026, PennyMac Loan Services, LLC (PennyMac) appeared and objected to Plaintiffs' request for a preliminary injunction.

On March 12, 2026, the Court denied Plaintiffs' request for a preliminary injunction, dissolved the temporary restraining order, and discharged the OSC re reissuance of a preliminary injunction. Plaintiff was subsequently ordered to dismiss PennyMac from the complaint. No dismissal of PennyMac has been filed.

On July 9, 2026, Defendant filed the present motion to set aside entry of default by Clerk's judgment.

On August 25, 2026, Bass, acting as sole duly appointed Successor Trustee of the Trust, filed a supplemental Declaration of Bass in opposition to the motion.

No reply has been filed.

II. Preliminary Procedural Issues

Form of Defendant Zemel's Motion – A motion for relief must consist of a notice of hearing on the motion, the motion itself, and a memorandum in support of the motion. (Cal. Rules of Court, rule 3.1112(a).) Zemel's motion does not comply with these requirements, as he has not submitted a notice of motion or a memorandum in support.

Plaintiffs' Opposition – All papers opposing a motion shall be filed and served at least nine court days before the hearing on the motion. (Code Civ. Proc., § 1005, subd. (b).) Plaintiffs' opposition was due on or before Friday, August 21, 2026. Therefore, Plaintiffs' opposition is untimely.

However, in the absence of any objection from Zemel or any proof of service establishing the date on which Plaintiff was served with the motion, and in the absence of cognizable prejudice to Zemel, the Court will exercise its discretion to consider the opposition on the merits.

III. Legal Standard

Standard for Motion to Set Aside Entry of Default – Per Code of Civil Procedure section 473(b), a court "may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect."

The general underlying purpose of Code of Civil Procedure section 473, subdivision (b) is to promote the determination of actions on their merits. (Even Zohar Const. & Remodeling, Inc. v. Bellaire Townhouses, LLC (2015) 61 Cal.4th 830, 839.) However, the court only has broad discretion to vacate the entry of default, default judgment, or a dismissal where the moving party timely establishes a proper ground for relief. (Cruz v. Fagor America, Inc. (2007) 146 Cal.App.4th 488, 495.) The moving party bears the burden of establishing that the default was the result of excusable neglect. (Marcotte v. Municipal Court (1976) 64 Cal.App.3d 235, 239.)

The party must seek such relief "within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc., § 473, subd. (b).)

IV. Discussion

Application – Zemel states that PennyMac, lender for the mortgage, responded to this case in March of 2026 and confirmed the foreclosure sale of the Property could proceed due to Plaintiffs' non-payment of the mortgage for a number of years, and argues that Plaintiffs' family member borrowed funds for home improvements via a second loan, which Zemel then purchased by Assignment of Trust Deed from a licensed mortgage broker for additional retirement income. (Motion, p. 1:18-24.) Zemel asserts this loan subsequently foreclosed due to non-payment and he was required to pay Plaintiffs' real estate taxes, insurance, and money to PennyMac, while Plaintiffs continuously delayed proceedings, including filing denied bankruptcy filings while failing to tender payment, resulting in Zemel losing his retirement income in the amount of \$63,000 from the second loan despite never having any contact or contractual agreement with Plaintiffs. (Motion, p. 1:24-2:3.) Zemel requests that the entry of default of attorney's fees and process services be dismissed and that the action as a whole be dismissed as a nuisance case, abuse of process, and vexatious litigation. (2:4-5.)

The Court notes that from the moving papers, it is unclear exactly what relief is sought and what legal basis underlies the request. However, as to Zemel's request to set aside entry of default, Zemel's motion is procedurally deficient and fails to set forth the facts warranting relief from entry of default as required by Code of Civil Procedure section 473, subdivision (b). Zemel has set forth no facts or argument that his default was the result of mistake, inadvertence, surprise, or excusable neglect. The motion is also not accompanied by a copy of the proposed answer to be filed as required. (Code Civ. Proc., § 473, subd. (b).)

Furthermore, the application for this relief must be filed within a reasonable time, in no case exceeding six months after default was entered. (Code Civ. Proc., § 473, subd. (b).) In an action to determine ownership or right to possession of real property, such as the present quiet title action, when a written notice of entry of default is personally served within California upon the party against whom default is entered and the notice states that any rights the party has to apply for relief shall expire 90 days after service of the notice, the party must apply for relief under the provisions of Section 473 within 90 days after service of the notice. (Code Civ. Proc., § 473, subd. (b).)

Here, the record does not establish the date or method of service of the order granting entry of default on Zemel, and the Court cannot determine whether the shortened 90-day limit for application for relief from default applies. However, under the general framework for relief under Section 473, Zemel's motion does not establish that he has moved for relief within a reasonable time. The request for default states that it was served on Zemel on January 8, 2026 via mail, and default was entered as requested on January 29, 2026. Zemel does not contend he was not served with the notice of entry of default or put forth any facts speaking to his delay in appearing in this case or as to his failure to move for relief from entry of default for over five months.

Accordingly, Zemel's motion to set aside default is DENIED.

V. Conclusion

Defendant James Zemel's Motion to Set Aside Entry of Default is DENIED.